

U.O.Note No.962/SC.E/97-1, Genl.Admn. (SC.E) Dept., dt.04.08.1997: Not to mention reference of A.C.B. or Vigilance Commission in correspondence.

Subject Heading : ACB - not to quote in references or charges

Subject Heading : Vigilance Commission - not to mention in references

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- Ref : 1. U.O.Note No.1798/SC.E/87-1, G.A. (SC.E) Dept., dt.20.10.87.
2. U.O.Note No.1798/SC.E/87-12, G.A. (SC.E) Dept., dt.22.08.89.
3. G.O.Ms.No.421, G.A. (SC.D) Dept., dt.03.08.1993.
4. From the Vigilance Commissioner, A.P.Vigilance Commission, Hyderabad
Lr.No.507/VC.F1/97-1, dt.24.03.1997.

The attention of all the Departments of Secretariat is invited to the references 1st to 3rd cited.

2. In the references 1st and 2nd cited, all the Departments of Secretariat have been instructed:-
- a) not to mention correspondence with the A.C.B. in their order appointing Inquiry Officer;
 - b) that they should not mark a copy of the order to the A.C.B. and to send the copy of the order separately through a covering letter to the A.C.B. and
 - c) that the A.C.B. to be addressed separately for furnishing documents to the I.O. as the ACB reports are considered as 'Classified documents' and cannot be furnished to the delinquent officer for purposes of preparing his defence and are meant only to assist the Disciplinary Authority to come to a firm conclusion about the action to be taken against the Delinquent Officer.
3. As per the orders issued in the G.O. 3rd cited, all final reports of enquiry by the A.C.B. will be forwarded to the concerned Departments through the Vigilance Commission and that the Vigilance Commission on consideration of the reports of the Anti-Corruption Bureau and other relevant records may advise the concerned departments as to the further action to be taken.
4. In spite of above clear instructions the Vigilance Commissioner has reported, in the reference 4th cited, that in quite a few cases, the Departments of Secretariat are still mentioning the reference number of the Commission's advice in their instructions / orders pertaining to disciplinary cases where the Commission's advice was sought for. As the advice of the Commission is based on the final report of the A.C.B. (i.e., Part-A report) which contains secret report it should not also be divulged by the Government in their correspondence or orders. The advice of the Commission is equally confidential and need not be mentioned in Government orders in disciplinary cases. Any indication of the source of advice would lead to disclosure of A.C.B. reports in litigations before courts and hence should be

avoided. The Vigilance Commissioner has therefore requested the Government to issue general instructions to all the Departments in the matter.

5. The Government have examined the matter and have agreed to issue instructions as requested by the Vigilance Commissioner.

6. The Government, therefore, while reiterating earlier instructions issued in the matter, request all the Departments of Secretariat not to mention the correspondence made with the A.P. Vigilance Commission in their order appointing the Inquiry Officer.